

- RAG Learning

2.4 The Supreme Court and the Judicial Branch

Politics — AQA (7152) — Paper 2 (Government and Politics of the USA and Comparative Politics)

The Supreme Court has **nine justices** appointed for life. Its central power — **judicial review** — is not granted by the Constitution at all; the Court asserted it for itself in 1803. Because formal amendment is near-impossible, the Court has become the effective engine of US constitutional change, which is why its composition is fought over so fiercely.

1. Structure and jurisdiction

- **Article III** establishes the judicial power; Congress created the lower federal courts.
- Structure: District Courts → Courts of Appeals (Circuit Courts) → Supreme Court.
- The Court controls its own docket through the **writ of certiorari**, granting review in only a small fraction of petitions — a significant agenda-setting power.
- The "rule of four": four justices must agree to hear a case.

2. Judicial review

Judicial review — the power to declare Acts of Congress, actions of the executive, or state laws unconstitutional and therefore void.

Established in ***Marbury v Madison* (1803)**, where Chief Justice Marshall held that it is emphatically the province of the judiciary to say what the law is. The power is **not written in the Constitution** — the Court claimed it, and it stuck.

Exam Tip: Judicial review is only meaningful because the Constitution is **entrenched**. There is a higher law against which statute can be measured, and a ruling can realistically only be

reversed by the Court itself or by an unattainable amendment. UK courts lack both features — which is the entire explanation for the difference in the two courts' power.

3. Appointment

1. A vacancy arises through death or retirement (justices serve for life during good behaviour).
2. The President nominates — selecting for judicial philosophy as much as professional standing.
3. The **Senate Judiciary Committee** holds hearings and takes testimony.
4. The full Senate votes; confirmation needs a **simple majority** since the filibuster for Supreme Court nominations was removed in 2017.

Why appointments are so politicised

- **Life tenure and stakes** — one appointment can shape constitutional interpretation for thirty years or more, long outlasting the President who made it.
- **Policy significance** — because amendment is near-impossible, the Court effectively decides abortion, gun rights, campaign finance, voting rules and the scope of federal power. Appointments are the most reliable route to lasting policy change.
- **Eroded norms** — the Senate refused to consider the **Garland** nomination in 2016 on election-year grounds, then rapidly confirmed **Barrett** weeks before the 2020 election. Confirmation votes are now near-party-line.

4. Judicial philosophies

	Originalism / strict constructionism	Living Constitution / loose constructionism
Core claim	Interpret the text according to the meaning it bore when adopted	Apply the text in light of contemporary conditions and values
Appeal	Constrains judges by an objective historical standard; leaves social change	Allows constitutional protection to develop without amendments the

	to legislatures and the amendment process	thresholds make unattainable
Associated with	Scalia, Thomas; the current majority	The Warren Court
Key rulings	<i>Dobbs</i> ; Second Amendment cases	<i>Brown</i> ; <i>Roe</i> ; <i>Obergefell</i>

Exam Tip: Neither approach removes judicial discretion as fully as it claims. Originalism requires contested judgments about historical meaning — on which historians disagree — and about the level of generality at which original meaning was pitched. Living constitutionalism requires judgments about which contemporary values count. Critics of both note that justices' conclusions correlate strikingly well with their political outlook whatever method they profess.

Activism and restraint

- **Judicial activism** — willingness to strike down legislation or overturn precedent, often extending rights or reshaping policy.
- **Judicial restraint** — deference to elected branches and to precedent, intervening only where a violation is clear.
- Both labels are used **polemically**: each side accuses the other of activism. They describe a disposition towards intervention, not a political direction — *Dobbs* was an activist decision by a conservative majority.

5. Landmark cases

Case	Ruling and significance
<i>Marbury v Madison</i> (1803)	Established judicial review
<i>Plessy v Ferguson</i> (1896)	Upheld "separate but equal" — later overturned

<i>Brown v Board of Education</i> (1954)	Segregated public schooling unconstitutional; overturned <i>Plessy</i> . A court delivering change no legislature of the period would
<i>Roe v Wade</i> (1973)	Recognised a constitutional right to abortion
<i>United States v Nixon</i> (1974)	Executive privilege does not permit withholding subpoenaed evidence
<i>United States v Lopez</i> (1995)	Struck down a federal gun-free school zones law; revived commerce clause limits
<i>Citizens United v FEC</i> (2010)	Independent political spending is protected speech; enabled Super PACs
<i>Shelby County v Holder</i> (2013)	Struck down the Voting Rights Act pre-clearance coverage formula
<i>Obergefell v Hodges</i> (2015)	Constitutional right to same-sex marriage
<i>Rucho v Common Cause</i> (2019)	Partisan gerrymandering claims non-justiciable in federal courts
<i>Dobbs v Jackson</i> (2022)	Overtaken <i>Roe</i> ; abortion returned to the states
<i>Students for Fair Admissions v Harvard</i> (2023)	Race-conscious university admissions unconstitutional

6. Limits on the Court

- **No enforcement power** — depends on the executive and the states to implement rulings. The decade of resistance to desegregation after *Brown* required federal troops at Little Rock.
- **Reactive** — cannot initiate cases; can only decide disputes litigants bring.
- **Appointment and confirmation** by elected officials determine its composition.

- **Congress** controls appellate jurisdiction and the number of justices; statutory rulings can be reversed by ordinary legislation.
- **Constitutional amendment** can reverse a ruling — the Sixteenth Amendment did exactly that.
- **Legitimacy** — the Court's authority rests entirely on public acceptance, which imposes a real practical limit.

Several of these are largely theoretical: amendment is near-impossible, and jurisdiction-stripping or court-packing would be politically explosive. The *effective* constraints are narrower than the formal list suggests.

7. Is the Court too powerful?

Yes	No
Nine unelected justices with life tenure can strike down legislation passed by elected majorities	It has no enforcement machinery and cannot select the disputes that reach it
It can reverse long-standing precedent, as <i>Dobbs</i> did after fifty years	Its composition is determined by elected officials — the framers' intended democratic input
It settles contested moral questions, removing them from ordinary democratic revision	Congress can reverse statutory rulings; amendment can reverse constitutional ones
It shapes the rules of political competition itself — <i>Citizens United</i> , <i>Shelby County</i> , <i>Rucho</i>	Most cases are decided unanimously or with cross-ideological majorities; the divided cases are unrepresentative

Exam Tip: The most sophisticated evaluative point is **structural rather than about the justices**: an entrenched constitution that is nearly impossible to amend *necessarily* transfers political authorship to whoever interprets it. The Court's power is a consequence of the amendment thresholds, not of judicial ambition — so blaming the justices misidentifies the cause.

The feedback loop

Note that rulings on campaign finance, voting procedures and districting affect **who wins future elections** — and therefore who makes future appointments. This makes the Court's insulation from politics largely nominal.

Key terms

Term	Definition
Judicial review	Power to declare legislation or executive action unconstitutional and void
Writ of certiorari	Order granting review of a lower court decision; how the Court selects cases
Rule of four	Four justices must agree to hear a case
Originalism	Interpreting the Constitution according to its meaning when adopted
Living Constitution	Interpreting the Constitution in light of contemporary values
Judicial activism	Willingness to strike down legislation and overturn precedent
Judicial restraint	Deference to elected branches and to precedent
<i>Stare decisis</i>	The principle of following established precedent
Amicus curiae brief	A submission by a party not directly involved, arguing for a particular outcome
Imperial judiciary	The charge that the Court has usurped the role of elected branches

Essential examples

- ***Marbury v Madison (1803)*** — the Court claiming judicial review for itself.

- ***Brown (1954)*** — and the decade of resistance that followed; rulings need enforcement.
- **Garland 2016 / Barrett 2020** — the same election-year argument applied then abandoned.
- ***Dobbs (2022)*** — a fifty-year precedent reversed after three appointments.
- ***Citizens United (2010)*** — the Court reshaping campaign finance.
- ***Shelby County (2013)*** and ***Rucho (2019)*** — the Court shaping the rules of electoral competition.